

24STCV16011 24STCV16011

County: los-angeles
Division: Civil Law and Motion
Department: 733
Hearing date: 2026-08-13
Motion: PLAINTIFF'S MOTION TO STRIKE AND/OR TAX COSTS
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Case Number: 24STCV16011 Hearing Date: August 13, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

JANE L.N. DOE and JANE Y.M. DOE,

Plaintiffs,

vs.

LOS ANGELES UNIFIED SCHOOL DISTRICT, a public entity; and
DOES 2 through 20,

Defendants.

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CASE NO.: 24STCV16011

[TENTATIVE] ORDER RE:

PLAINTIFF'S MOTION TO STRIKE AND/OR TAX
COSTS

Dept. 73

8:30 a.m.

August 13, 2026

I.

INTRODUCTION

This

action arises from the alleged sexual abuse suffered by Plaintiffs Jane L.N. Doe and Jane Y.M. Doe ("Plaintiffs") while they were students at 97th Street Elementary School ("97th Street"), which is within Defendant Los Angeles Unified School District ("LAUSD"), by their teacher, Don Ray Moore ("Moore"). Plaintiffs allege that LAUSD knew or should have known about the sexual abuse committed by Moore against Plaintiffs and that Moore had a history of sexual abuse against students.

On

June 26, 2024, Plaintiffs initiated this action.

On

November 12, 2024, Plaintiffs filed a first amended complaint ("FAC"), alleging

a single cause of action for Negligence.

The

FAC alleges that LAUSD (1) failed to adequately hire, supervise, and retain Moore; (2) failed to investigate or otherwise confirm or deny allegations about Moore; (3) ignored clear and obvious signs that Moore was engaged in an inappropriate and harassing relationship with Plaintiffs; (4) allowed Plaintiffs to spend unsupervised time with Moore; (5) failed to report that Moore sexually harassed, molested, and abused Plaintiffs; and (6) failed to implement and/or enforce policies and procedures that were aimed at preventing or detecting sexual abuse of its students. (FAC ¶¶ 60,64.)

On May

22, 2026, the Court granted LAUSD's motion for summary judgment.

On June 16, 2026,

LAUSD filed a Memorandum of Costs ("Costs Memorandum").

On July 1, 2026,

Plaintiffs filed the instant motion to tax costs.

On July 31, 2026, LAUSD

filed an opposition.

On August 6, 2026,

Plaintiffs filed their reply.

II.

LEGAL STANDARD

Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding. (Code Civ. Proc., § 1032(b).) Under Code of Civil Procedure section 1033.5(c)(2), allowable costs "shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." Subdivision (3) requires: "Allowable costs shall be reasonable in amount." Items not mentioned in [Section 1033.5] and items assessed upon application may be allowed or denied in the court's discretion." (Code Civ. Proc., § 1033.5, subd. (c)(4).) There is no requirement that copies of bills, invoices, statements, or any other such documents be attached to the

memorandum. Only if the costs have been put in issue via a motion to tax costs must supporting documentation be submitted. (Bach v. County of Butte (1989) 215 Cal.App.3d 294, 308.)

On a motion to tax costs, “[i]f the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion. However, because the right to costs is governed strictly by statute a court has no discretion to award costs not statutorily authorized.” (Ladas v. California State Auto. Assn. (1993) 19 Cal.App.4th 761, 774, internal citations omitted.) “The court’s first determination, therefore, is whether the statute expressly allows the item, and whether it appears proper on its face. If so, the burden is on the objecting party to show them to be unnecessary or unreasonable.” (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131, internal citations omitted.) The objecting party does not meet this burden by arguing that the costs were not necessary or reasonable but must present evidence and prove that the costs are not recoverable. (Litt v. Eisenhower Med. Ctr. (2015) 237 Cal.App.4th 1217, 1224; Seeever v. Copley Press, Inc. (2006) 141 Cal.App.4th 1550, 1557.)

Rule of Court

3.1700 states, “A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first.”

III.

DISCUSSION

Plaintiffs seek an order striking and/or taxing LAUSD’s costs. On June 16, 2026,

LAUSD filed

its Costs Memorandum seeking \$21,888.87 in Costs comprised of \$13,206.62 in Deposition Costs, \$5,546.95 in Service of

Process Costs, and \$3,135.30 in Fees for Electronic Filing or Service.

In

the alternative, Plaintiffs request that the Court order LAUSD to produce competent documentation (invoices and itemized billing records) substantiating each challenged item, and tax any item LAUSD fails to support.

i.

Item 4 —

Deposition Costs (\$13,206.62)

Plaintiffs

ask the Court to tax (a) the videotaping/video-recording charges of \$2,643.75 (Jane Y.M. Doe — \$900.00; Jane L.N. Doe — \$1,743.75) as merely convenient where the depositions were also stenographically transcribed; (b) the \$2,475.00 "Taking" charge for Kimberly Lakes, Ph.D., to the extent it represents a non-recoverable expert witness fee; and (c) the Sue Spears deposition charge, which is internally inconsistent on the face of the Worksheet (\$651.15 in the "Transcribing" column versus a \$351.15 subtotal).

Here,

as to the \$2,475.00 "Taking" charge for Kimberly Lakes, Ph.D., LAUSD concedes that the costs for this expert deposition were inadvertently included and are not recoverable. Otherwise, Plaintiffs fail to carry their burden. Deposition costs are expressly recoverable under Code of Civil Procedure section 1033.5 subdivision (a)(3), and the remaining deposition costs claimed in LAUSD's cost

bill appear proper on their face as required by Nelson as each cost is identified by the name of the deponent and further broken down into categories (ie. transcribing, taking, and videotaping.) (Memorandum of Costs, pgs. 2, 4.)

As

to the \$2,643.75 in video-recording charges for the depositions of Jane Y.M. Doe (\$900.00) and Jane L.N. Doe (\$1,743.75), the Court finds that these costs appear proper on their face and were reasonably necessary to prepare for trial at the time they were incurred rather than merely convenient. Plaintiffs argue that these amounts should be taxed because the depositions were stenographically transcribed and "the Worksheet offers no reason the additional video record was necessary." However, Plaintiffs concede that recording of a

necessary deposition is an allowable item, and LAUSD was not required to “offer [a] reason the additional video record was necessary” in its Cost Memorandum as it is Plaintiffs’ burden to show that the costs were not reasonable or necessary. (Nelson, supra, 72 Cal.App.4th at 131.)

As

to the Sue Spears entry, while the worksheet lists \$651.15 in the “Transcribing” column but a \$351.15 subtotal, the \$13,206.62 total for Item 4 was calculated using the lower \$351.15 figure and Plaintiffs concede that the \$651.15 figure appears to be a clerical error. The Court agrees and there is no need to tax any amount of this entry.

Therefore,

the Court taxes \$2,475.00 in deposition costs for the “Taking” charge for expert Kimberly Lakes, Ph.D’s deposition.

ii.

Item 5 —

Service of Process (\$5,546.95)

Plaintiffs

ask the Court to tax the duplicative and facially excessive registered-process-server charges, including the \$307.50 “KFH/SCPMG” charge that appears both on the face of the Worksheet (Item 5c) and again in Attachment 5d, and “the unreconciled face charges” in Items 5a–5c (\$877.75 total), together with the unsupported and unreasonable charges itemized in the accompanying Memorandum.

Here,

the Court finds that LAUSD’s service of process costs are proper. The amount actually incurred in effecting service of process by a registered process server is specifically recoverable under Code of Civil Procedure section 1033.5(a)(4)(B). LAUSD set forth in detail in its memorandum of costs each item of service claimed, and in Opposition, established that each item was served by a registered process server. Further, LAUSD showed that the two \$307.50 “KFH/SCPMG” entries are not duplicative charges as both Plaintiff Jane L.N. Doe and Plaintiff Jane Y.M. Doe received treatment from Kaiser for the injuries they attributed to LAUSD’s conduct in this lawsuit, and subpoenas for records were thus necessary for both Plaintiffs. In reply, Plaintiffs

concede that “[i]n light of the District’s newly produced invoices, Plaintiffs no longer press the ‘manner of service’ objection or the challenge to the two \$307.50 KFH/SCPMG charges.”

Further,

Plaintiffs challenges multiple service of process charges for the first time in Reply: “Lizzette Vescera — \$934.50; Sam Wasfi Family Therapy — \$638.60; Dr. Karim Lofty — \$377.35; Kryss Castle — \$311.10; CTC — \$341.70 and \$297.50; Comprehensive Psychiatric Services — \$155.75 and \$200.85; and Sam Wasfi — \$206.00. This is improper and the Court will not consider these arguments which should have been raised in the Motion.

Therefore,

the Court will not tax any of LAUSD’s Service of Process costs.

iii.

Item 14 —

Fees for Electronic Filing or Service (\$3,135.30)

Plaintiffs

ask the Court to tax all amounts not shown to be fees for electronic filing or service that the Court required or ordered, as opposed to optional electronic-service or convenience charges.

In

opposition, LAUSD argues that the Superior Court of Los Angeles County mandates electronic filing of all documents in all civil case types by litigants represented by attorneys. (Decl. Rivera   11, Ex. K – CA R Los Angeles Superior Ct. Rule 3.4.)

Here,

the prevailing party is allowed to recover the fees for the electronic filing of documents “if a court requires or orders electronic filing.” (Code of Civil Procedure section 1033.5(a)(14).) The Court agrees with LAUSD that the requirement that parties file all documents electronically in the LASC is a sufficient ground alone to permit LAUSD to recover costs for such filings in this action. While Plaintiffs argue in reply that LAUSD does not explain how much of these costs are based on electronic service rather than electronic filing, service fees are addressed in Item 5 and Plaintiffs failed to raise this argument there.

Thus, the Court
will not tax any of LAUSD's Fees for Electronic Filing or Service.

IV.

CONCLUSION

Based on the
foregoing,

Plaintiffs' motion
to strike and/or tax costs is GRANTED in part. Defendant LAUSD's cost bill is
taxed in the amount of \$2,475.00 for the deposition "Taking" charge for
Kimberly Lakes, Ph.D. Defendant LAUSD is entitled to the remainder of its
costs.

Dated this 13th
day of August 2026

Hon. Gary D.
Roberts

Judge of the
Superior Court